Southern Power Distribution Co. Of ... vs Biomass Energy Developers Association ... on 28 April, 2016

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COURT-I

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

APPEAL NO. 224 OF 2015

Dated: 28th April, 2016

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr. I.J. Kapoor, Technical Member

In the matter of :

Southern Power Distribution Co. of Andhra Pradesh Ltd. & Anr. .... Appellant (s)

Versus

Biomass Energy Developers Association & Ors. .... Respondent (s)

Counsel for the Appellant(s) : Mr. A. Subba Rao

Counsel for the Respondent(s) : Mr. Anand K. Ganesan
Mr. Sandeep

ORDER

Appellant has filed Appeal No. 42 of 2016 challenging the Order dated 19.07.2014 passed by Andhra Pradesh Electricity Regulatory Commission ("State Commission"). That appeal has been admitted and is listed on 03.05.2011. The present appeal is filed against the Order dated 07.02.2015 passed by the State Commission rejecting the application for review of Order dated 19.07.2014.

Since the appeal against the original Order dated 19.07.2014 is admitted by this Court, the present appeal does not require any consideration. In view thereof, without expressing any opinion as to whether such appeal is maintainable or not, we dismiss the present appeal as infructuous. We make it clear that we have not expressed any opinion either on the merits of the matter or on the maintainability of such appeal.

Accordingly, the appeal is dismissed as infructuous.

(I.J. Kapoor)
Technical Member

(Justice Ranjana P. Desai)
Chairperson

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